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AS AMENDED

By: Caldwell (Trey), Hill, and
Staires of the House

Hall of the Senate

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1 Authority shall be authorized to issue obligations within the limit
2 prescribed by this subsection based upon the defeasance of
3 previously issued obligations.

4 C. Except as otherwise provided by subsection F of this
5 section, proceeds from the Infrastructure Pool shall be for the
6 purpose of providing financing for two or more eligible local
7 government entities for an authorized infrastructure project located
8 in this state involving a pooled financing.

9 D. Sixty-five percent (65%) of the net proceeds from the
10 Infrastructure Pool shall be used by the Authority for the benefit
11 of eligible local government entities the population of which,
12 according to the most recent Federal Decennial Census, does not
13 exceed three hundred thousand (300,000) persons for any
14 participating municipality.

15 E. Thirty-five percent (35%) of the net proceeds from the
16 Infrastructure Pool may be used by the Authority for the benefit of
17 any and all eligible local government entities regardless of
18 population.

19 F. The proceeds from the Infrastructure Pool may also be used
20 for the purposes authorized by Section 891.8 of this title.

21 SECTION 2. AMENDATORY 62 O.S. 2021, Section 891.8, is
22 amended to read as follows:

23 Section 891.8. A. The Authority shall be authorized to act as
24 a conduit issuer for the benefit of one or more eligible local

1 government entities or for the benefit of one or more local
2 government entities in conjunction with a for-profit business entity
3 for an authorized economic development project using the Economic
4 Development Pool.

5 B. The Authority shall be authorized to issue its obligations
6 in order to provide net proceeds on a pooled basis not to exceed ~~One~~
7 ~~Hundred Million Dollars (\$100,000,000.00)~~ One Hundred Twenty-five
8 Million Dollars (\$125,000,000.00) for the Economic Development Pool.

9 The Authority shall be authorized to issue obligations within the
10 limit prescribed by this subsection based upon the defeasance of
11 previously issued obligations.

12 C. Except as otherwise provided by subsection G of this
13 section, proceeds from the Economic Development Pool shall be for
14 the purpose of providing financing for an eligible local government
15 entity or entities or for the benefit of a business entity for an
16 authorized economic development project located in this state.

17 D. Sixty-five percent (65%) of the net proceeds from the
18 Economic Development Pool shall be used by the Authority for the
19 benefit of eligible local government entities the population of
20 which, according to the most recent Federal Decennial Census, does
21 not exceed three hundred thousand (300,000) persons for any
22 participating municipality.

23 E. Thirty-five percent (35%) of the net proceeds from the
24 Economic Development Pool may be used by the Authority for the

1 benefit of any and all eligible local government entities regardless
2 of population.

3 F. Obligations issued pursuant to the provisions of this
4 section may be issued on a tax-exempt basis if the applicable
5 provisions of federal law governing private activity bonds allow
6 such issuance. Otherwise, the obligations issued pursuant to the
7 provisions of this section shall be issued on a taxable basis.

8 G. The proceeds from the Economic Development Pool may also be
9 used for the purposes authorized by Section 891.7 of this title.

10 **SECTION 3.** This act shall become effective July 1, 2026.

11 **SECTION 4.** It being immediately necessary for the preservation
12 of the public peace, health or safety, an emergency is hereby
13 declared to exist, by reason whereof this act shall take effect and
14 be in full force from and after its passage and approval.

15 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS
16 April 22, 2026 - DO PASS AS AMENDED
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